1. Disclaimer:

    1.1. The use of the KAPA ME (“KAPA”) Application (“the App”) is entirely at the user’s own risk and the user bares full responsibility for any risk or loss resulting from such use or reliance on any information on the App.

    1.2. KAPA ME makes no representations or warranties, be they express or implied, as to the quality, timeliness, operation, integrity, availability or functionality of the App, or as to the accuracy, completeness or reliability of any information on the App.

    1.3. In the event KAPA ME’s agents or representatives make any such warranty or representation as per clause 1.2 above, KAPA ME will not be bound by such.

    1.4. KAPA ME bares no liability for any damage, loss or expense, whether direct, indirect or consequential in nature, arising out of or in connection with the access to or use of the App and/or any content therein, unless otherwise provided by law.

    1.5. Any views or statements made or expressed on the App are not necessarily the views of KAPA ME, its directors, employees and/or agents and KAPA ME shall not be held responsible for any said views or statements.

    1.6. KAPA ME makes no warranty or representation, whether express or implied, that the information or files available on the App are free of viruses, spyware, malware, trojans, destructive materials or any other data or code which is able to corrupt, destroy, compromise, disrupt, disable, harm, jeopardise or otherwise impede in any manner the operation, stability, security functionality or content of a computer system, computer network, hardware or software in any way.

    1.7. The user bares all risk associated with the existence of any software or destructive materials in terms of clause 1.6 above. Viruses, save where such risks arise due to the gross negligence or wilful misconduct of KAPA ME, its employees, agents or authorised representatives.

    1.8. KAPA ME bares no liability for any damage, loss or liability of any nature whatsoever arising out of or in connection with access to or use of the App.

2. Limitation of liability

    2.1. KAPA ME shall not be liable for any inaccurate information published on the App or communicated, save where such liability arises from the gross negligence or wilful misconduct of KAPA ME, its employees, agents or authorised representatives.

2.2. KAPA ME shall not be liable for any direct, indirect, incidental, special or consequential loss or damages which might arise from the use of, or reliance upon, the app or the content contained in the app; or the inability to use the app, and/or unlawful activity on the App, and/or any linked third party website or mobile application. Should it be found that KAPA ME is liable, such liability shall be limited to the order charges relating to that particular order.

2.3. KAPA ME is indemnified against any loss, claim or damage which may be suffered by the user or any third party arising in any way from the use of the App and/or any linked third party website or mobile application.

3. Linked Third Party Websites:

3.1. The App may contain links or references to other websites ("Third Party Websites") which are outside of KAPA ME's control, including those of advertisers. KAPA ME is not responsible for the practices and/or privacy policies of Third Party Websites or the "cookies" that those sites may use.

3.2. Whilst the App may refer to or provide links to Third Party Websites, the use of such is shall be entirely at the risk of the user and KAPA ME shall bear no liability for any loss, expense, claim or damage, whether direct, indirect or consequential, arising from the use of such Third Party Websites or the reliance on any information contained thereon.

4. Availability and termination

4.1. KAPA ME will use reasonable endeavours to maintain the availability of the App, but are entitled at any time to discontinue providing the App or any part thereof with or without notice to the user.

4.2. KAPA ME may in its sole discretion terminate, suspend and modify the App, with or without notice to the user. KAPA ME will not be liable in the event that it chooses to suspend, modify or terminate the App, other than for processing any orders made prior to such time, to the extent possible.

4.3. Should a user fail to comply with any regulation or policy of KAPA ME, including any incident involving payment of the price of an order for any , KAPA ME may suspend and/or terminate the user's access to the App, without any prejudice to any claims for damages or otherwise that KAPE ME may have against the user.

4.4. KAPA ME may blacklist a on its database, refuse to accept or process payment on any order, and/or to cancel any order concluded between a user and KAPA ME, in whole or in part, on notice to a user:

4.4.1. for purposes of preventing suspected criminal conduct or abusive behaviour towards staff; or
4.4.2. where it suspects that a user is abusing the App; or
4.4.3. where a user has created multiple user profiles to take advantage of a promotion or Coupon intended by KAPA ME to be used once-off by a user.

4.5. KAPA ME accepts no other liability which may arise as a result of such blacklisting, suspension or termination of access to the App and/or refusal to process any order.